

पुनस्थापकीय न्याय सम्बन्धी अवधारणा, सिद्धान्त र प्रक्रिया



प्रस्तुतिमा समेटिएका विषयहरू

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- मूल्याङ्कन

पुनस्थापकीय न्यायको अवधारणा

- Restorative justice is a process whereby parties with a stake in a criminal offense (including the offender, the victim, and the communities of each) collectively resolve how to deal with the aftermath of the criminal act with an emphasis on repairing the harm from that act – the harm to the victim, to the community, and to the offender her/himself.

- Donald J. Schmid (RJ in New Zealand: A Model for US Criminal Justice)

Restorative Justice focuses on the harm caused by the crime, repair of that harm, and reduction of future harm by preventing future crime.

Understanding the Restorative Justice

- Restorative justice is every action that is primarily oriented toward doing justice by repairing the harm that has been caused by a crime
 - what do we mean by a "harm caused by a crime?"
 - who (and what) shall we consider as suffering that harm ?
 - how can that harm be repaired ?
 - what is "justice" and how can it be achieved ?

Four main forms of RJ :

- Victim offender mediation - Canada : bring together victim and offenders with a mediator
- Community reparation Boards - USA : community involvement in reparation
- Police led-restorative cautioning - Australia, UK : reintegrative shaming, degrading ceremony but reintegrative ceremony, to make them realize, reparation and apology, Thames Valley Police, UK is famous
- Family Group Conferencing - New Zealand : bring together offender, families and community to determine appropriate means of redress for victims, court ordered conferences

However, No Unified RJ Movement

- Proponents prefer to use different names –
 - transformative justice
 - peacemaking criminology
 - relational justice
 - community justice

अवधारणागत रुपमा प्रस्थानका विषयहरु

Conceptual Departures

- Crime is a violation of people and relationships rather than just a violation of law
- Violence, community decline, and fear-based responses as indicators of broken relationships
- Violations always create obligations
- The aim of justice is to identify obligations to meet needs and to promote healing
- Justice is collaborative process. Justice involves victims, offenders and the community in search to identify needs and obligations

Conceptual Departures

- Considers crime and wrongdoing to be an offense against an individual or community, rather than the State
- The primary aim is making amends for the offending, particularly the harm caused to the victim, rather than inflicting pain upon the offender
- Accountability is defined as recognizing the wrongfulness of one's conduct, expressing remorse for any resulting injury, and taking actions to repair the damage done by offending
- Crime creates positive obligations against the "just desert" theory of justice
- Reintegration of both victims and offenders within the community
- Different from punishment model and treatment model of criminal justice system

पुनस्थापकीय न्यायको अवधारणागत विकास

History

- Two different streams –

- Australia, New Zealand and Canada

- Restorative justice is used to describe a variety of ancient indigenous dispute resolution practices associated with Aboriginal groups

- US and Europe

- Restorative justice has been associated primarily with one practice, victim-offender mediation

History

- [Howard Zehr](#)'s book *Changing Lenses—A New Focus for Crime and Justice*, first published in 1990, is credited with being "groundbreaking",^[14] one of the first to articulate a theory of restorative justice
- By the second half of the 1990s, the expression "restorative justice" had become popular, evolving to widespread usage by 2006
- According to [Howard Zehr](#), "Two peoples have made very specific and profound contributions to practices in the field – the [First Nations](#) people of [Canada](#) and [the U.S.](#), and the [Maori](#) of [New Zealand](#)...
- the [Maori](#) had a well-developed system called [Utu](#) that protected individuals, social stability and the integrity of the group

Sentencing Model

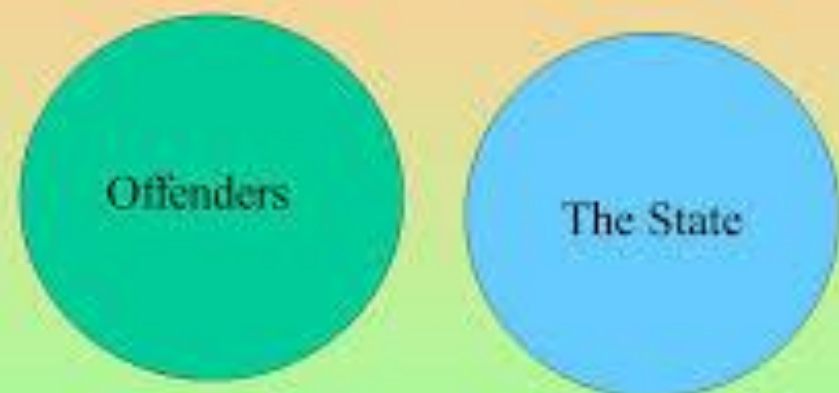
- Punishment Model
- Treatment Model
- Restorative Model

परम्परागत फौजदारी न्याय प्रणालीसंगको
भिन्नता

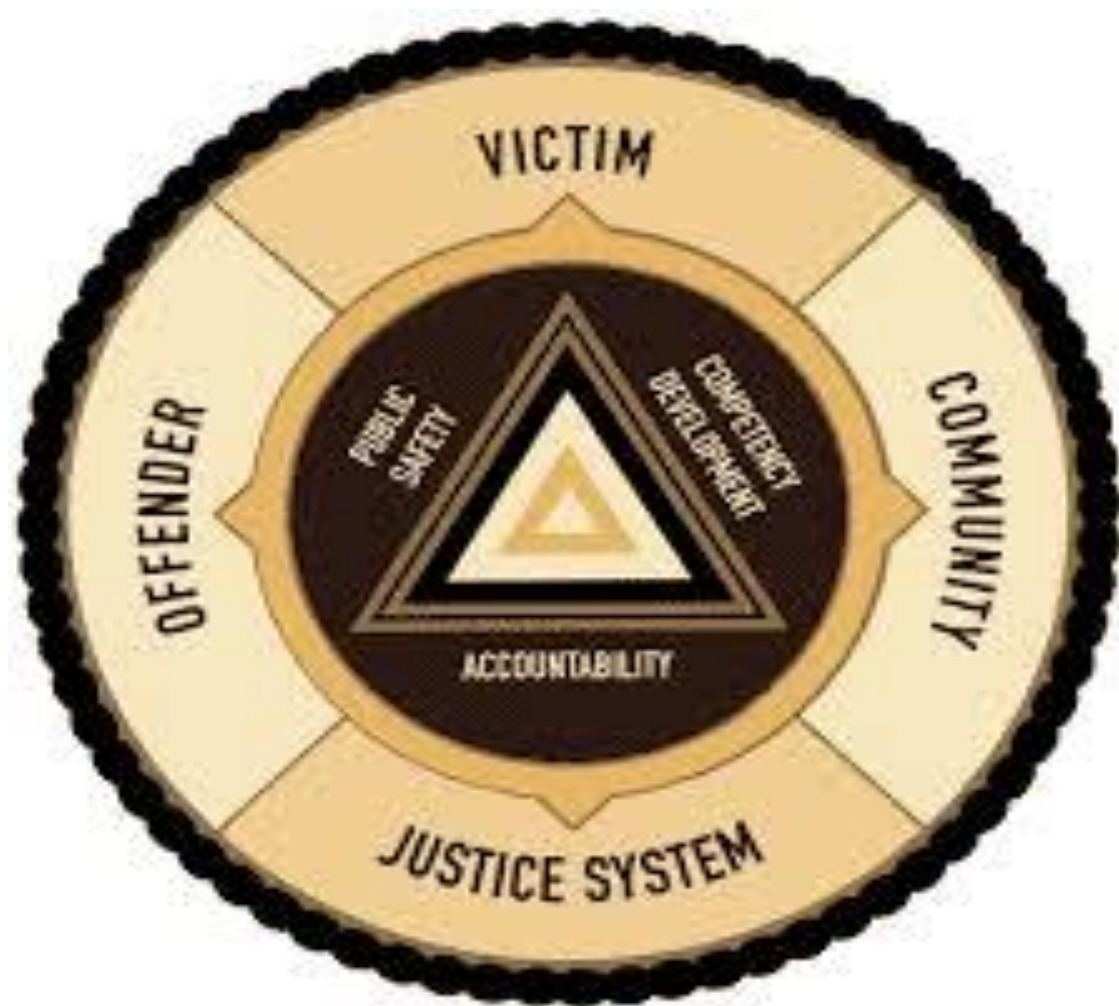
Difference from Retribution

- Retributivist primarily consider the harm to be of an abstract judicio-moral order, which creates an imbalance that must be corrected by an equal harm to the offender. Under the restorative justice too, crime is defined by the harm however, the primary reaction against it is not to punish but to repair or compensate for the harm caused by the crime.
- RJ is based on a trauma model which theorizes that committing trauma is traumatizing to the perpetrator. That inflicting trauma is a double edged sword. At least for perpetrators who have the capacity to experience empathy, who are not psychopathic. Retributive justice sounds frighteningly like an eye for an eye, which leaves everyone blind in the end. In other words, everyone is traumatized

Traditional Justice



Problem: breaking the law



Punitive	Restorative
Only deal with the wrongdoer	Include those who are affected by the incident in the response
Focus on what rule was broken	Understand how people were harmed and affected by what happened
Punish the wrongdoer	Agree on actions to make things right
Exclude the wrongdoer by suspensions, expulsion, etc.	Find what actions can be taken to repair harms and get right with the community

પ્રચલિત અભ્યાસહરુ

प्रचलित अभ्यासहरू

- Family group conferencing
- **Victim-offender mediation**
- **Restorative conferencing**
- **Community restorative boards**
- **Restorative circles and restorative systems**
- **Circles of Support and Accountability**
- **Sentencing circles**
- **Rituals of circles**

Criticism

- Restorative Justice is not panacea
- Restorative justice has no role, for example, in punishing the offender or in deterring others from crime
- community involvement is questionable. It may undermine the interest of victims
- **Is justice subjective ?**

Criticism

- not available to all offenders, only those who have admitted their crime but victims may reject the offer. therefore cannot be a global solution
- psychological harm may be brought to the victim especially if the criminal shows no empathy towards them which may result in a lowered self esteem
- additionally, the offender may be harmed, the victims may gang up on the offender which is especially dangerous if the offender is a child.
- victims may attempt to shame the offender which is not the aim of the process

At the End

- Restorative justice has not yet changed the basic course of the criminal justice system. It has proven to be a more effective alternative to prison or other forms of punishment, but has produced mitigated results in terms of victim participation and reparation for injury
- While its objectives may be laudable, restorative justice is nevertheless a disaggregated model. Combining relational justice, participative or consensual justice and transforming or reforming justice, restorative justice has become a catchall concept that has something for everyone.
- Restorative justice has great potential for the parties involved and for the community. However, it is not the magic solution to all evils. It remains an option for some crimes in some circumstances and under some conditions. It must not be considered a cheap form of justice or pretend justice.

धन्यवाद